[15]
Last Chance to Know

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The Supreme Court of India has sentenced Mohammad Afzal to death. We wait now for the President to accept or reject his clemency petition. But as we wait to be told if a man will or will not hang for his alleged role in the December 2001 Parliament attack case, have we at all understood this major event of contemporary Indian history? More importantly, will the completion of the judicial process, whether it ends in Afzal being hanged to death or imprisoned for life, in fact scuttle our efforts at understanding the event?

Limits of the Judiciary

The questions just asked presuppose that the judgement of the Supreme Court failed to provide the required understanding. Why? As a court of law, it is bound by a structure of responsibilities. In the present case, the court was faced with four appeals, two by the Delhi Police and one each by Afzal and Shaukat (two of the four originally accused in the Parliament attack case). To that end, it examined the evidence produced before the trial court and the subsequent judgements by the trial court and the high court.

The evidence was produced by an authorized investigating agency, namely, the Special Cell of the Delhi Police, with ACP Rajbir Singh as the investigating officer. The evidence was presented in the trial court with supporting materials and witnesses. Most of the evidence, especially in Afzal's case, went unchallenged. The trial court provided Afzal with an accredited lawyer who chose to remain largely inactive.

In fairness, we must note that whenever the defence—especially Gilani's and Shaukat's eminent team of lawyers—was able to question some evidence successfully, the high court and the Supreme Court did take notice of that and set the evidence aside. This is particularly true of the confessions obtained